STANDARD OPERATING PROCEDURE			P-4500	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **12/23/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 28-707 THROUGH 28-713 N.R.S. '43-247 (3) (a)			
SUBJECT CHILD ABUSE/NEGLECT	CROSS REFERENCE P-4820 INTERVIEW AND MIRANDA WARNINGS P-4830 INTERVIEWS IN SCHOOLS			

I. Purpose:

The purpose of this policy is to establish procedures for Road Patrol deputies responding to child abuse/neglect calls, the investigation of such calls by Road Patrol deputies and for the removal of children for their protection.

II. Policy:

The Sarpy County Sheriff's Office recognizes a special obligation to thoroughly investigate all reports of child abuse and neglect. The goals of the investigation are to protect the child, collect and preserve evidence, identify and arrest perpetrators, and prepare cases for prosecution.

III. Procedures:

A. Child Abuse/Neglect-Deputy Responsibilities: Road Patrol deputies shall have the initial responsibility to investigate child abuse or neglect allegations. The investigation may be conducted at a school or residence. The reporting party may be a Department of Health and Human Services employee, a physician, a nurse, a school employee, or a private citizen. The deputy may also encounter child abuse or neglect situations while responding to unrelated calls for service. It is the obligation of the deputy to investigate any allegation of child abuse or neglect thoroughly. When responding to a complaint of child abuse or neglect, the deputy shall adhere to the following guidelines:

1. The reporting party, if other than the victim, should be identified and interviewed to determine if a crime has been committed and if the child is in imminent danger.

2. The identity of the reporting party should remain confidential.

3. The deputy shall attempt to determine the level of risk to the child. High risk factors include, but are not limited to:

a) The alleged offender is in the home or remains in a care-taking role with the child or other children.
b) The child's physical or mental well-being may be seriously endangered.
c) There is no adult caretaker able to protect the child.
d) There is a potential for multiple victims.
e) The child may be removed from Sarpy County by the perpetrator.
f) Physical or testimonial evidence may be lost.

4. If the deputy believes the complaint may be valid, he or she shall notify the on-duty shift supervisor and advise them of the situation. The on-duty shift supervisor shall direct the deputy to await the On-Call Investigator or continue the investigation depending on the circumstances.

5. If appropriate, the deputy should interview the victim:

a) Interviews of victims at school shall be conducted according to P-4830 Interviews in Schools.

b) All physical injuries shall be photographed with a defined scale. A ruler is the preferred scale.

c) In the event photographs are required of the unexposed parts of a school aged child, only a deputy of the same sex may take the photographs. Deputies may photograph injuries of opposite sex infants or toddlers with a witness present.

d) The alleged perpetrator shall not accompany the child during the interview.

e) Interviews may be conducted without parental notification or consent when necessary to protect the integrity of the investigation. Parents should be notified as soon as practicable after the interview unless doing so may jeopardize the investigation.

6. If the investigating deputy has found evidence for child abuse or neglect, the well-being of all the children who may be exposed shall be checked.

7. If appropriate, the deputy shall complete all follow-up including interviewing the suspect.

8. Any time a deputy is assigned a child abuse/neglect or check the well-being of a child call, he or she shall complete an incident report.

a) The deputy may list the case as unfounded if the investigation has determined no abuse or neglect has occurred.

b) If persons at the scene of the alleged child abuse/neglect complaint refuse to cooperate with the deputy and there exists no exigent circumstances that may require forced entry, the deputy shall complete an incident report and forward a copy to Department of Health and Human Services.

c) The responding deputy shall notify HHS through the Child Abuse/Neglect Hotline 1-800-652-1999.

9. The deputy shall request Communications label any check well-being calls involving children as Child Abuse/Neglect whether valid or unfounded.

B. **Removal of Children-Deputy Responsibilities:** When responding to a residence where child abuse or neglect is clearly evident to the extent the health and welfare of the child or children in the home are in jeopardy, the deputy shall remove the child victim and all minor children residing in the home with the victim. Deputies removing any child/children from a home and assuming custody of a child or children shall adhere to the following procedures:

1. Deputies shall consider and document the following conditions when making a determination regarding the removal of children from a home and charging parents or guardians:

a) Animal feces on the floor where children are present.
b) Refuse piled in food preparation areas.
c) A lack of food or rotting, inedible food.
d) Visible vermin (insects, rodents, etc.).
e) Unsafe conditions.
f) Inoperable plumbing.
g) Lack of utilities (electricity, gas, or water).
h) Persistent, obnoxious odors due to unsanitary conditions.
i) Lack of clean clothing.

2. The deputy shall notify his or her shift supervisor and the On-Call Investigator.

3. The On-Call Investigator shall complete the affidavit for removal.

4. A minimum of two deputies shall be present during the removal.

5. If necessary, deputies shall provide for immediate medical treatment.

6. Photographs shall be taken of the interior of the home showing conditions that are detrimental to the physical well-being of child.

7. The parents or guardians of the child/children to be removed shall be notified that the child/children are being made a ward of the State. The parents shall be contacted by a representative of the Department of Health and Human Services and provided additional information regarding the child/children's removal and return process.

8. The On-Call Investigator shall contact the Department of Health and Human Services (HHS).

- **a)** The Department of Health and Human Services representative shall make arrangements for housing for the child.
- **b)** The deputy may transport with permission from the shift supervisor.
- **c)** The deputy shall note in his or her report the name of the Department of Health and Human Services representative.

9. The On-Call Investigator shall complete an Affidavit for Removal of Minor Child(ren) Due to Abuse/Neglect from Parent or Custodial Home. Neb. Rev. Stat. '43-247 (3) (a)

- **a)** The form shall be emailed to the County Attorney and the Department of Health and Human Services. The appropriate email addresses are at the bottom of the affidavit.

10. Deputies shall not make placement arrangements without contacting the Department of Health and Human Services and completing the Affidavit of Removal.

11. Deputies shall not choose placement for children if a parent is being cited or arrested for child abuse-negligent or child abuse-intentional. The On-Call Investigator shall be contacted, and the On-Call Investigator shall either complete a removal or work with HHS to determine a proper safety plan.

12. The parents or guardians shall not be issued a citation for a detention hearing. The County Attorney's Office will issue a notice of hearing to the parents or guardians.

13. If the child/children are a ward of the State, the deputy shall notify the Department of Health and Human Services and request new placement for the child/children. No Affidavit of Removal or citation for a detention hearing shall be completed as the child/children are already in the custody of the State. However, if the child/children are a ward of the State, but placed in the parents care, an Affidavit for Removal of Minor Child(ren) from Custodial Home Due to Abuse/Neglect per N.R.S. '43-247(3) (b). shall be completed.

14. Children may be removed from a federal installation (e.g. Offutt Air Force Base) if, in the opinion of the investigating deputy, the child's health and/or safety are at risk. If children are removed, the United States Air Force Office of Special Investigations shall be notified.

C. Unsupervised Children-Deputy Responsibilities: Deputies encountering an unsupervised child shall determine if the child possess the maturity and intellect to care for himself or herself over a short or extended period of time. There is no specific age limit regarding when a child may or may not be left home alone. Deputies may use the following questions to determine if neglect charges may be appropriate:

1. How would you contact your mother or father should you need them?
2. What would you do if a stranger came to the door?
3. What would you do if there was a fire?
4. What would you do if your brother or sister fell down the stairs and was hurt (if the child is caring for siblings)?
5. Do you prepare meals for yourself or your siblings?
6. Who are you supposed to call if you have a problem?

D. Arrests for Child Abuse/Neglect-Deputy Responsibilities:

1. When an investigation reveals probable cause to believe an offense has been committed and the suspect has been identified, the deputy shall arrest the suspect or seek an arrest warrant.

a) Nebraska State Statute 28-707 states when abuse/neglect has been committed "knowingly" or "intentionally," the crime is considered a felony.

b) Nebraska State Statute 28-707 states when the abuse/neglect has been committed "negligently," the crime is considered a misdemeanor. The deputy may cite and release a suspect for negligent child abuse/neglect.

2. Deputies shall not choose placement for children if a parent is being cited or arrested for child abuse-negligent or child abuse-intentional. The On-Call Investigator shall be contacted, and the On-Call Investigator shall either complete a removal or work with HHS to determine a proper safety plan.

3. Arrests may not be made on federal installations.

E. Child Abuse/Neglect-Supervisor Responsibilities:

1. The shift supervisor shall contact the On-Call Investigator gator on all valid child abuse/neglect incidents and provide him or her the preliminary details of the call. The On-Call Investigator shall respond to the call.

2. The shift supervisor shall notify (verbally or in writing) the On-Call Investigator of all unfounded child abuse/neglect and check well-being of a child incidents.

3. The shift supervisor shall respond to all calls where children need to be removed from a home for their safety or well-being.

4. The shift supervisor shall notify the on-duty watch commander and the ADC regarding all verified complaints of child abuse/neglect and any time children are removed from a home.